

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-19

PELOTON INTERACTIVE, INC.,

COMPLAINANT,

v.

FLEXPORT INTERNATIONAL LLC

RESPONDENT.

**PELOTON INTERACTIVE, INC.'S OPPOSITION TO
RESPONDENT'S MOTION TO STRIKE SUPPLEMENTAL
EXPERT REPORT OF GREGORY E. SMITH**

Table of Contents

I.	INTRODUCTION	1
II.	STATEMENT OF FACTS	2
A.	<i>TIMELINE OF FLEXPORT’S PRODUCTION OF THE EVENTS DOWNLOAD SPREADSHEETS</i>	2
B.	<i>SUBSTANTIAL EFFORTS MADE BY PELOTON IN MAKING SMITH AVAILABLE</i>	4
III.	LEGAL STANDARD.....	5
IV.	ARGUMENT	6
A.	<i>THE SUPPLEMENTAL REPORT IS PROPERLY BEFORE THE PRESIDING OFFICER</i>	6
B.	<i>SMITH’S REPORT CONTAINS PERMISSIBLE DAMAGES OPINIONS</i>	8
C.	<i>SMITH’S OPINIONS ARE SUFFICIENTLY RELIABLE UNDER DAUBERT</i>	9
V.	CONCLUSION	10

TABLE OF AUTHORITIES

	Page(s)
Cases	
<i>AngioDynamics Inc. v. C. R. Ballard, Inc.</i> , 537 F. Supp. 3d 273 (N.D.N.Y. 2021)	9
<i>Barnes v. D.C.</i> , 289 F.R.D. 1 (D.D.C. 2012)	6
<i>Barrett v. Atl. Richfield Co.</i> , 95 F.3d 375 (5th Cir. 1996)	10
<i>Carnegie Mellon Univ. v. Marvell Tech. Group, Ltd.</i> , 286 F.R.D. 266 (W.D. Pa. 2012)	9
<i>Daubert v. Merrell Dow Pharm.</i> , 509 U.S. 579 (1993)	6
<i>Hapag Lloyd Possible Violations</i> , Dkt. No. 21-09, 2022 WL 1239377 (ALJ Apr. 22, 2022)	10
<i>In re Vehicle Carriers</i> , Dkt. No. 16-01, 16-07, 16-10, and 16-11, F.M.C.2d 175 (FMC 2018)	2
<i>McCulloch v. H.B. Fuller Co.</i> , 61 F.3d 1038 (2d Cir. 1995)	6
<i>Pell v. E.I. DuPont De Nemours & Co.</i> , 231 F.R.D. 186 (D. Del. 2005)	9
<i>Redman v. John D. Brush & Co.</i> , 111 F.3d 1174 (4th Cir. 1997)	10
<i>Total Control, Inc. v. Danaher Corp.</i> , 338 F.Supp. 2d 566 (E.D. Pa. 2004)	8
<i>TZ SSE Buyer, LLC v. Yang Ming Marine Transp. Corp.</i> , Dkt. No. 24-10, 2025 WL 1083815 (ALJ Mar. 24, 2025)	10
<i>United States v. 14.38 Acres of Land Situated in Leflore County, Mississippi</i> , 80 F.3d 1074, 1078 (5th Cir. 1996)	6
<i>Unapproved Section 15 Agreements - S. African Trade</i> , Dkt. No. 882, 7 F.M.C. 159, 167 (FMB 1962)	6
<i>Visual Comfort & Co. v. Cosco Shipping Lines, Ltd.</i> ,	

Dkt. No. 24-01, 2025 WL 1662697 (ALJ Apr. 28, 2025)	10
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Other Authorities

Fed. R. Civ. P. 26.....	5, 6
Fed. R. Civ. P. 37.....	5
Fed. R. Evid. 702	5, 6
46 C.F.R. § 502.204.....	6
Rules of Practice and Procedure; Presentation of Evidence in Commission Proceedings, Dkt. No. 16-08, 81 FR 93831-01, 2016 WL 7386406(F.R.) (FMC Dec. 22, 2016)	6

I. INTRODUCTION

Peloton Interactive, Inc. (“Peloton”), hereby submits its Opposition to Flexport International LLC’s (“Flexport”) Motion to Strike the Expert Report of Gregory E. Smith. Flexport’s Motion should be denied. The Motion to exclude Smith’s damages analysis based on Flexport’s late production of its own internal records demonstrating the bases (or lack thereof) for issuing demurrage and detention (D&D”) to Peloton should be denied. Smith’s Supplemental Report (“Suppl. Report”) was timely under the scheduling orders governing this case: it was served two weeks before discovery closed and eighty-seven days before Peloton filed its initial merits brief (“Initial Brief”). Flexport had sufficient time to rebut the report, which it chose not to do, and to appear for Smith’s deposition on the date requested by Flexport, which it failed to do. Flexport concedes Smith’s initial report (“Initial Report”) was timely and supplemented a few weeks after Peloton finally received the full set of data from Flexport,¹ as Smith reserved the right to do in his Initial Report.²

Flexport has not identified any actual prejudice resulting from the timing of the Suppl. Report, nor could they since it relies on information that has been in Flexport’s possession the

¹ The records should have been produced by December 2024 but were not until May 2025. Despite Peloton’s continued insistence for their production, the reason for this resistance is clear: Flexport’s own records directly contradict its defense that it was justified in demanding payment for over \$30 million in D&D. Although Peloton does not believe that Flexport has complied with its discovery obligations and produced all relevant information from its systems (*see, e.g.*, Initial Br. at 69-73; Reply Br. at 69-75; Peloton Proposed Findings of Fact (“PFF”) ¶¶ 383-450), Peloton acted as expeditiously as possible upon receipt of Flexport’s purported final production.

² The Suppl. Report was produced to Flexport just three and a half weeks after the Initial Report on May 19, 2025, and just 26 days after Flexport produced the last installment of its data. *See* Initial Report dated April 21, 2025, at ¶ 2 (stating, in its entirety, “[t]his report sets forth my opinions based upon the information I have obtained to date from pleadings, documents produced by the parties, deposition testimony, information obtained from Peloton via documents and interviews, and my independent research. **If additional information is produced, I intend to review relevant materials to determine whether they impact any of the analyses and opinions set forth in this report. I may supplement this report as appropriate.**”) (emphasis added).

entire time. Conversely, Peloton would suffer significant prejudice if the report were stricken and it would be an inequitable result given Flexport's discovery tactics.³ Exclusion is also unnecessary because the Presiding Officer, the sole trier of fact, is empowered to evaluate and weigh the Report. There is no reason to believe the Presiding Officer will be misled or unduly influenced by Smith's supplemental opinions. The Motion should be denied in favor of a merits review.

II. STATEMENT OF FACTS

A. *Timeline of Flexport's Production of the Events Download Spreadsheets*

On December 13, 2024, Flexport produced its Download 1, comprising 94,198 lines of data downloaded from Flexport's CORE system. This production was immediately identified by Peloton as incomplete and deficient because Flexport had unilaterally cut off the relevant time period by omitting all underlying shipment documentation prior to October 2021, which excluded approximately 2,257 of the shipments in Peloton's Amended Complaint, accounting for millions in D&D charges.⁴ Without this documentation, Peloton could not reasonably and fully examine Flexport's unreasonable D&D charges. Declaration of Allison Skopec ("A.S. Decl.") ¶¶ 14-16. These concerns were memorialized in Peloton's Motion to Compel, Dkt. 32, which noted Flexport's unilateral decision to limit production of data to post-October 2021—a cutoff that excluded critical information relevant to the disputed charges.⁵ Despite these deficiencies, Flexport

³ However, if the Presiding Officer has any concerns, the Suppl. Report can be allowed *nunc pro tunc* since there will be no material prejudice to Flexport and the delay was minimal. *See In re Vehicle Carriers*, Dkt. No. 16-01, 16-07, 16-10, and 16-11, F.M.C.2d 175, 176 (FMC 2018).

⁴ This included information such as cargo ready dates, cargo discharge dates, empty return dates, issues encountered during the cargo's journey like "chassis shortage" or "no appointment available," and messages from truckers and warehouses about the status of shipments, which Flexport had assured Peloton would be captured by its CORE system. Initial Brief at 35-36.

⁵ Although Peloton's Motion to Compel was filed on January 14, 2025 (*see* Dkt. 32), the motion was not fully ruled upon until the Presiding Officer's June 30, 2025 Order on Pending Motions. Dkt. 72; well after the close of discovery. Although this order directed Flexport to produce additional responsive documents related to D&D charged on Peloton Shipments, Flexport only produced nineteen publicly available versions of their D&D tariffs. Peloton PFF ¶¶ 399-402.

stated it had completed its document production for Peloton as early as December 16, 2025. A.S. Decl. ¶ 7. It reiterated this claim multiple times throughout the proceeding. A.S. Decl. ¶ 7, 8.

By spring 2025, this incomplete production issue persisted. A.S. Decl. ¶ 9. On March 24, 2025, a meet and confer focusing on the cutoff date for the Events Download was held. A.S. Decl. ¶ 9. On March 25, these concerns were presented to the Presiding Officer, underscoring the ongoing discovery impasse. A.S. Decl. ¶ 10. After the hearing, Peloton sent an April 1, 2025 letter, reiterating the outstanding deficiencies and formally requesting the full Events Download. A.S. Decl. ¶ 11. A Joint Status Report followed on April 4, 2025, in which Peloton again highlighted the limitations and incompleteness of Flexport's production. A.S. Decl. ¶ 12. That same day, Peloton sent an email to Flexport, pressing for resolution of the unresolved discovery issues. A.S. Decl. ¶ 13. In total, Peloton requested the Events Download at least five times.

Flexport's response was incremental and belated. Flexport did not produce Download 2 until April 6.⁶ It was significantly larger than Download 1, containing 179,765 lines, covering April 2021 to October 2021. A.S. Decl. ¶ 14. But this production did not fully resolve the deficiencies. It was not until April 25, 2025 (four days after the export report date of April 21) that Flexport produced Download 3, a final tranche of 1,656 lines, covering August 2020 to April 2021. A.S. Decl. ¶ 16. The delayed piecemeal nature of these productions not only hampered Peloton's ability to analyze and contest the D&D charges in real time via Smith, but also demonstrated Flexport's persistent failure to provide timely, complete, and transparent discovery.⁷⁸

⁶ This was two weeks before the expert report date of April 21.

⁷ This timeline was also detailed in Peloton's PFF and included citations to supporting documents in Peloton's Appendix. *See* Peloton PFF ¶¶ 383-389, 396.

⁸ Flexport previously claimed Peloton could have conducted this analysis earlier, as it had access to the same CORE data Flexport produced. *See* Flexport Opp. Brief, Dkt. 88, at 29 and 55. However, as demonstrated and discussed in Peloton's Reply Brief, the shipment data Peloton could see using Flexport's client portal was controlled by Flexport and was significantly different than

B. Substantial Efforts Made by Peloton in Making Smith Available

In total, Peloton provided four dates that Smith was available for deposition.⁹ Peloton first disclosed Smith as its damages expert on December 19, 2024. A.S. Decl. ¶ 18. On May 21, 2025, Flexport requested all of Smith's available deposition dates. A.S. Decl. ¶ 19. That day, Peloton promptly responded that Smith was available May 28 & 30 and requested timely confirmation to facilitate Smith's travel. A.S. Decl. ¶ 20. Flexport counsel replied that he was unavailable on both proposed dates. A.S. Decl. ¶ 21. Peloton then offered May 27 as a third date. Peloton reiterated the three open dates and stated Peloton's readiness to proceed with the deposition, requesting the Veritext link and Notice of Deposition to finalize arrangements. A.S. Decl. ¶ 22. Flexport responded on May 27, stating that May 27, May 28, and May 30 were all unavailable, and that counsel had three depositions set for June 2. A.S. Decl. ¶ 24. Flexport proposed June 3 as the only feasible date. A.S. Decl. ¶ 24. On May 28, Peloton confirmed Smith's availability for June 3 and suggested that both parties submit a brief joint statement to the Presiding Officer, as this one remaining deposition would fall outside the discovery period. A.S. Decl. ¶ 25. **Flexport did not respond.** A.S. Decl. ¶ 26. On June 2, Peloton sought deposition confirmation, and no response was received. A.S. Decl. ¶¶ 27-28. On June 3, Smith waited in Holland & Knight's offices for the deposition to begin for three hours. A. S. Decl. ¶ 29. Peloton requested deposition details from Veritext, only to learn that no deposition was scheduled. A.S. Decl. ¶ 30-31. Peloton asked Flexport to clarify, to which it replied that the deposition had never been confirmed and that

that produced in Flexport's Event Downloads. *See* Peloton Reply Br. at 71-75. To date, Peloton still does not have access to or production from Flexport's Transmission data or Warehouse Application. *See* Peloton Reply Brief at fn 59 and 60.

⁹ Three dates fell within the discovery period; one was offered after the discovery period for Flexport's convenience.

proceeding would violate the Scheduling Order. A.S. Decl. ¶¶ 32-33. Peloton responded it was present and prepared to proceed with Smith but received no response. A.S. Decl. ¶¶ 34-35.¹⁰

III. LEGAL STANDARD

Flexport invokes two separate legal standards in its motion to strike: (1) timeliness under the scheduling orders herein, as well as Fed. R. Civ. P. 26 and 37; and (2) relevance and reliability under the FMC equivalent of Fed. R. Evid. 702. However, Flexport misconstrues these standards in its effort to use them as grounds for excluding the Suppl. Report. First, Fed. R. Civ. P. 26(a)(2)(D) does require expert disclosures to be made “at the times and in the sequence that the court orders.” Flexport recognized this standard yet ignored that it was met by the Suppl. Report. Its Motion fails to mention that Smith was timely disclosed as an expert witness,¹¹ timely submitted his Initial Report,¹² and timely supplemented his report,¹³ more than 10 days before close of discovery and compliant with the deadlines of both the Second Amended Scheduling Order (“Second Am. Sched. Order”) and the Order on Pending Motions. *See* Second Am. Sched. Order at 1; Order in Pending Mots. At 7. Flexport also critically ignores that Rule 26(e)(1) *requires* experts to supplement their reports if they learn that, in some material respect, the information disclosed is incomplete or incorrect and the additional information has not otherwise been made known during discovery or in writing.¹⁴ On this point, Courts have explicitly held a party may supplement its initial expert report when substantial data is produced after discovery deadlines.¹⁵

¹⁰ *See* Peloton PFFs ¶¶ 441-450 and Appendix for supporting documents.

¹¹ This occurred on December 19, 2024.

¹² This occurred on April 21, 2025 (pursuant to the Second Am. Sched. Order).

¹³ This occurred on May 19, 2025.

¹⁴ Any such supplement must be disclosed at least thirty days before trial, unless the court orders otherwise (Fed. R. Civ. P. 26(a)(3)). Smith’s Suppl. Report was served on Flexport 119 days before the amended due date of Flexport’s Opp. Br. on September 15, 2025.

¹⁵ *Barnes v. D.C.*, 289 F.R.D. 1, 13 (D.D.C. 2012) (holding that “[m]otions to strike are strongly disfavored” and supplemental expert reports are permitted when filed during a court-ordered additional discovery period).

As to the second asserted basis, as a threshold matter, none of Flexport's challenges to the Suppl. Report render it inadmissible; rather, each go to the *weight* the Presiding Officer should afford the expert report.¹⁶ While Fed. R. Evid. 702 requires the Court to serve as the "gatekeeper" of expert testimony by "ensuring that an expert's testimony both rests on a reliable foundation and is relevant to the task at hand,"¹⁷ Flexport ignores that this gatekeeping function is closely related to what *jurors* may discern as the trier of fact.¹⁸ *See* Fed. R. Evid. 702, Committee Notes on Rules - 2023 Amendment § 2 (discussing judicial gatekeeping as necessary because jurors may lack expertise to assess whether expert conclusions are properly supported). This function is reduced for administrative agencies, because "unlike the law juries for whom the exclusionary rules were meant" agencies "are presumed competent to judge the weight that should be given evidence."¹⁹

IV. ARGUMENT

A. The Supplemental Report Is Properly Before the Presiding Officer

Flexport argues the Suppl. Report should be stricken because it is untimely and thereby violates the Second Am. Sched. Order but provides no evidence of such conduct. Mot. at 3-4. Instead, it was Flexport's failure to timely provide responsive evidence as to its each-container

¹⁶ *See McCulloch v. H.B. Fuller Co.*, 61 F.3d 1038, 1044 (2d Cir. 1995) ("Disputes as to the strength of [an expert's] credentials, faults in his use of [a particular] methodology, or lack of textual authority for his opinion, go to the **weight, not the admissibility of his testimony.**") (emphasis supplied) (citations omitted).

¹⁷ *Daubert v. Merrell Dow Pharm.*, 509 U.S. 579, 597 (1993); *see also Kumho Tire Co. v. Carmichael*, 526 U.S. 137, 141 (1999).

¹⁸ Furthermore, "the trial court's role as gatekeeper is not intended to serve as a replacement for the adversary system." *United States v. 14.38 Acres of Land Situated in Leflore County, Mississippi*, 80 F.3d 1074, 1078 (5th Cir. 1996). This holds all the more true when the trier of fact is an administrative law judge, fully qualified to discern the weight of admissible evidence.

¹⁹ *Unapproved Section 15 Agreements - S. African Trade*, Dkt. No. 882, 7 F.M.C. 159, 167 (FMB 1962). This point is further supported by the fact that the FMC is not bound by the Fed. R. Evid.; they are only guidelines to aid the Presiding Officer's analysis. 46 C.F.R. § 502.204; Rules of Practice and Procedure; Presentation of Evidence in Commission Proceedings, Dkt. No. 16-08, 81 FR 93831-01, 2016 WL 7386406(F.R.) (FMC Dec. 22, 2016).

justification data that necessitated additional analysis by Smith. Flexport cannot feign that the Suppl. Report was unexpected, untimely, or prejudicial. Regardless, the Suppl. Report complied with both the Second Am. Sched. Order and the Order on Pending Motions, which extended the close of discovery to June 2, 2025. *See* Second Am. Sched. Order at 1; Order on Pending Mots. At 7. Peloton served the Suppl. Report upon Flexport on May 19, 2025 – 14 days prior to the close of discovery. *Id.*²⁰

Next, using Flexport’s own shipment files, Peloton established that Flexport either cannot or has not produced underlying data or documentation for millions in D&D charges. Initial Br. at 30. Flexport repeatedly contends that the Suppl. Report was limited to “event” terms in assessing D&D responsibility. This assertion is fundamentally misleading. The so-called “event” terms were not mere search criteria; they served as structured categories to organize **Flexport’s** specific, documented reasons for shipment delays. The analysis was rooted in verbatim, contemporaneous communications and operational records—not in generalized or inferential data. By relying on Flexport’s actual documentation and communications, Smith’s damages analysis provides a robust, evidence-based determination of responsibility for D&D charges, directly refuting Flexport’s attempt to minimize the rigor and factual foundation of Peloton’s assessment. Flexport’s Opposition Brief (Dkt. 88) only bolsters this point by demonstrating how Flexport’s ambiguous shipping records obstructed Peloton’s ability to verify or contest D&D charges in real time.²¹²²

²⁰ May 19 was also only three weeks after Flexport produced Download 3 on April 25—in this time period, Smith thoroughly analyzed the entirety of the data and produced his supplement.

²¹ *See* Peloton’s Reply Brief at 69-74.

²² Flexport claims in its Mot. to Strike that the “Portal Events Files produced by Flexport do not contain relevant data on every Flexport shipment of Peloton cargo included in Exhibit A to the Amended Complaint, nor do they contain complete documentation of every event that impacted each shipment and the causes of delays or events that led to demurrage, detention and storage charges.” Mot. to Strike at 6. This is **directly contradictory** to several previous statements in which Flexport asserted the opposite—that it has produced all relevant communications and details for

B. Smith's Report Contains Permissible Damages Opinions

Flexport argues the Suppl. Report goes beyond “evaluating damages” and instead proffers an unqualified opinion on liability. Mot. at 5. Flexport is wrong. In his Suppl. Report, Smith employs a rigorous and reliable methodology to examine the supplemental record and further support his damages analysis. Smith specifically reviews each of the Flexport operations notations for each container that formed the basis for Flexport’s issuance of D&D charges to Peloton. This exercise is squarely within Smith’s disclosed role to quantify Peloton’s damages, and his expertise as a Certified Public Accountant, a Chartered Global Management Accountant, and a Master Analyst in Financial Forensics. Courts have routinely admitted expert testimony that incorporates or relies on an evaluation or interpretation of the record on the grounds that it is the role of the expert to “assist the trier of fact to understand the facts already in the record.”²³

Smith has *always* been disclosed as Peloton’s damages expert and Flexport’s assertion that he is acting as an undisclosed liability witness is not supported by fact or law.²⁴ Smith did not create liability opinions; he summarily analyzed Flexport’s data, which was in both Flexport’s

Peloton Shipments via the Portal Event Files. *See* Flexport Opp. Brief at 45 (The “three (3) spreadsheets downloaded from ‘Core’ provid[e] information for each shipment and updates regarding same, collectively the “Events Downloads” contain[] a total of 275,626 line items of data.”); Respondent’s Response to Complainant’s Status Report, Dkt. 71 at 10 (citing Decl. Tanner at ¶¶ 23, 24) (“As has been stated – several times – to Peloton’s counsel, and as has been set forth in multiple submissions, the Events Downloads, which reflect all of the correspondence in “Core” contain ALL of the correspondence”).

²³ *Total Control, Inc. v. Danaher Corp.*, 338 F.Supp.2d 566, 570 (E.D. Pa. 2004) (citing Weinstein’s Federal Evidence § 702.03).

²⁴ Although Flexport makes broad claims that the Suppl. Report makes “opinions related to liability issues” (Mot. to Strike, ¶ III.B.) and makes “prohibited legal opinions” (Mot. to Strike ¶ III.C.), it cites no specific opinions from the Suppl. Rep. which it considers to be either liability or legal opinions. The Suppl. Report makes clear that Smith’s analysis is an allocation of the total demurrage, detention, and storage charges for which Peloton is seeking reparations (Suppl. Rep. at ¶ 7) and that the analysis “assum[es] Flexport is found liable for its unreasonable practice of charging Peloton for demurrage, detention, and storage without assessing or demonstrating that Peloton caused delays that led to charges.” Suppl. Rep. at ¶ 6.

possession and in the record, which was translated into a digestible form. Further, if Flexport had chosen to take Smith's deposition, his methodology and role as a damages expert would have been further established through direct and cross examination. Importantly, and because it cannot, Flexport does not actually challenge Smith's qualifications as a damages expert.

Smith properly assumed Flexport was liable for unreasonable practices under the Shipping Act and then conducted a damages quantification.²⁵ Smith's supplement continued his analysis based on the same assumption. CXD-1659, Suppl. Report ¶ 6.²⁶ Smith quantified damages incurred by Peloton by conducting a forensic analysis of all shipment-level data line items, applying search terms and systematically mapping them to specific shipments and corresponding dollar amounts in the Events Download.²⁷ Smith properly made *assumptions* as to liability and then quantified the damages Peloton incurred; Smith did not make an impermissible finding as to liability.²⁸

C. Smith's Opinions are Sufficiently Reliable under Daubert

Flexport is incorrect in contending that the Suppl. Report is unreliable. Mot. at 6-13. Flexport ignores that reliability under Daubert refers to methodology, which Flexport did not bother to test when it failed to appear for Smith's deposition. Smith's methodology is also reliable as it tracks recent FMC precedent, in which the Presiding Officers have required an analysis based

²⁵ Smith "assumed that Flexport is liable to Peloton for the violations alleged in the Amended Complaint and that Peloton is entitled to recover damages reparations from Flexport." CXD-1432, Initial Report ¶ 8.

²⁶ The Suppl. Report incorporates the Initial Report by reference. CXD-1658, Suppl. Report ¶ 1.

²⁷ CXD-1663, Suppl. Report at 6, n. 10; *see also* CXD-1668-1669, Suppl. Report, Exs. 1 and 2 (listing the search terms identified as Peloton Responsibility and Flexport Responsibility)

²⁸ *See, e.g., AngioDynamics Inc. v. C. R. Ballard, Inc.*, 537 F. Supp. 3d 273, 333 (N.D.N.Y. 2021). For its part, Flexport relies on, *Carnegie Mellon Univ. v. Marvell Tech. Group, Ltd.*, 286 F.R.D. 266, (W.D. Pa. 2012), *Pell v. E.I. DuPont De Nemours & Co.*, 231 F.R.D. 186, 192 (D. Del. 2005), *Redman v. John D. Brush & Co.*, 111 F.3d 1174, 1179 (4th Cir. 1997), and *Barrett v. Atl. Richfield Co.*, 95 F.3d 375, 382 (5th Cir. 1996), stating an expert's opinion should be excluded when such expert proffers an opinion outside of the scope of her expertise. Mot. at 6. However, and as belied by the record herein, each of these cases are inapposite, as Smith proffers an opinion as to damages, not liability, and damages matters are within Smith's expertise. CXD-1430, Initial Report ¶ 2.

on “specific facts”²⁹ that allows them to connect D&D charges on affected shipments with respondents’ unreasonable practices.³⁰ Throughout this recent line of cases, the Presiding Officers recognize that the damages analysis is fact specific, including that it may be a “shipment-by-shipment,” “container-by-container,” or charge specific³¹ analysis, depending on the nature of the unreasonable practices and available evidence. Here, Smith conducted a forensic analysis of all 275,626 shipment-level data line items produced by Flexport by applying search terms and systematically mapping them to specific shipments and corresponding dollar amounts in the Events Download Spreadsheets.³² Flexport attempts to diminish Smith’s expertise are belied by his credentials.³³

V. CONCLUSION

Because the Supplemental Report is procedurally proper, and because Flexport will suffer no prejudice by its admission whereas Peloton would be severely prejudiced by its exclusion, the Court should deny the Motion.

²⁹ *TZ SSE Buyer, LLC v. Yang Ming Marine Transp. Corp.*, Dkt. No. 24-10, 2025 WL 1083815, at *20 (ALJ Mar. 24, 2025).

³⁰ *See Visual Comfort & Co. v. Cosco Shipping Lines, Ltd.*, Dkt. No. 24-01, 2025 WL 1662697, at *23-24 (ALJ Apr. 28, 2025).

³¹ *See, e.g., Hapag Lloyd Possible Violations*, Dkt. No. 21-09, 2022 WL 1239377, at *27-30 (ALJ Apr. 22, 2022).

³² CXD-1663, Suppl. Report at 6, n. 10; *see also* CXD-1668-1669, Suppl. Report, Exs. 1 and 2 (listing the search terms identified as Peloton Responsibility and Flexport Responsibility).

³³ Flexport does so by contending Smith is “an accountant. Period” and his “Reports reflect that he has absolutely no experience whatsoever with the logistics industry at all or NVOCCs.” Mot. at 7.

Dated: October 8, 2025

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CERTIFICATE OF SERVICE

The undersigned hereby certifies that on the date which appears below, the undersigned served the attached document on counsel for Respondent at the following email addresses:

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Dated: October 8, 2025

/s/ Allison N. Skopec
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